

Agreement Types

14 types for Facilities Management · precondition P2.8

Risk level is the one field with teeth.

A low-risk type is one of the four preconditions for the low-touch path, so it decides what can skip review. It is deliberately conservative here: routing a simple NDA through review costs an hour of somebody’s time, and auto-approving a TFM contract costs a multi-year commitment nobody read.

At a glance

TYPE	RISK	TYPICAL TERM	SCHEDULES
Data Processing Agreement	High	matches parent	Yes
Framework Agreement	High	4 years	Yes
Hard FM Services Agreement	High	3 years	Yes
Master Services Agreement	High	3 years	Yes
Termination and Settlement Agreement	High	one-off	No
Total Facilities Management Agreement	High	5 years	Yes
Consultancy and Professional Services	Medium	project	No
Equipment Supply and Installation	Medium	project	Yes
Planned Preventive Maintenance Agreement	Medium	1 year	Yes
Reactive Maintenance Call-Off	Medium	1 year	No
Soft FM Services Agreement	Medium	3 years	Yes
Variation Agreement	Medium	matches parent	No
Non-Disclosure Agreement	Low	2 years	No
Statement of Work	Low	project	No

In detail

Data Processing Agreement dpa **HIGH RISK**

Typical term: matches parent · Schedules: required

WHY THIS RISK LEVEL Where a supplier processes personal data — access control, CCTV, visitor management, occupancy analytics. High because the terms are largely non-negotiable in law and getting them wrong is a regulatory exposure rather than a commercial one.

Framework Agreement framework HIGH RISK

Typical term: 4 years · Schedules: required

WHY THIS RISK LEVEL Several suppliers, no committed volume. High because it sets the terms for everything called off under it, often for years, and is frequently signed before anyone knows what will be bought.

Hard FM Services Agreement hard_fm HIGH RISK

Typical term: 3 years · Schedules: required

WHY THIS RISK LEVEL Mechanical, electrical, plumbing, fire and lifts. Statutory compliance sits here: a lapse in fire or lift inspection is a criminal liability for the client, not just a service failure.

Master Services Agreement msa HIGH RISK

Typical term: 3 years · Schedules: required

WHY THIS RISK LEVEL The umbrella every call-off hangs from. Its liability and indemnity terms govern work nobody has scoped yet, which is what makes it the highest-risk document in the estate.

Termination and Settlement Agreement termination HIGH RISK

Typical term: one-off · Schedules: not required

WHY THIS RISK LEVEL Ends a relationship and settles what is owed. High because it is usually drafted under pressure, waives rights permanently, and is the document most likely to be read by a court.

Total Facilities Management Agreement tfm HIGH RISK

Typical term: 5 years · Schedules: required

WHY THIS RISK LEVEL One supplier takes the whole estate. Highest value, longest term, and the hardest to exit — a failed TFM contract is an operational emergency, not a procurement problem.

Consultancy and Professional Services consultancy MEDIUM RISK

Typical term: project · Schedules: not required

WHY THIS RISK LEVEL Advice rather than labour — surveys, design, compliance audits. The exposure is professional indemnity and who owns the deliverable, not service credits.

Equipment Supply and Installation equipment_supply MEDIUM RISK

Typical term: project · Schedules: required

WHY THIS RISK LEVEL Plant and equipment with installation. Title, warranty and defects liability matter more here than service levels, and the warranty usually outlives the installer's involvement.

Planned Preventive Maintenance Agreement ppm MEDIUM RISK

Typical term: 1 year · Schedules: required

WHY THIS RISK LEVEL Scheduled maintenance to a written regime. Medium rather than low because the schedule is the compliance evidence: if the regime is wrong, every visit against it is wrong.

Reactive Maintenance Call-Off

reactive

MEDIUM RISK

Typical term: 1 year · Schedules: not required

WHY THIS RISK LEVEL Called off against agreed rates when something breaks. The risk is not the individual job, it is that unpriced work accumulates past any approval threshold one call-off at a time.

Soft FM Services Agreement

soft_fm

MEDIUM RISK

Typical term: 3 years · Schedules: required

WHY THIS RISK LEVEL Cleaning, catering, security, waste, grounds. Lower statutory exposure than hard FM, but the largest headcount — which is why TUPE almost always applies.

Variation Agreement

variation

MEDIUM RISK

Typical term: matches parent · Schedules: not required

WHY THIS RISK LEVEL Amends an existing contract. The risk is not the change but the drift: a chain of small variations can move a contract a long way from what was approved, and each one looks small.

Non-Disclosure Agreement

nda

LOW RISK

Typical term: 2 years · Schedules: not required

WHY THIS RISK LEVEL Signed before anything else, usually in volume, usually on our paper. The genuine low-touch case: standard wording, no value, no service obligation.

Statement of Work

sow

LOW RISK

Typical term: project · Schedules: not required

WHY THIS RISK LEVEL Scoped work under an existing MSA. Low only because the MSA already carries the liability and indemnity terms — a SOW with no parent agreement is not low risk and must not use this type.

Draft for discussion. Not reviewed by counsel and not legal advice. Every value here is tenant-editable configuration.